

# HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN GHANA

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## Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Ghana, grounded in the EPA environmental-permit system, public hearings, the rights of aggrieved persons, CHRAJ and the High Court, and documented community campaigns

*This guide uses the Ghanaian legal terms you will actually encounter (the environmental permit and the EIS, the EPA and LI 1652, screening and scoping, the public hearing, the aggrieved-person appeal, CHRAJ, stool land, and so on), each explained in plain language where it first comes up. Ghana's environmental law was overhauled in early 2025 (the new Environmental Protection Act, Act 1124), so some names and powers have changed; the core mechanics below apply, but always check the current position.*

**A note on terms.** Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up.

**A note on money.** Budgets in this guide are in Ghana cedis (GHS). Every figure is indicative — Ghanaian community campaigns range from near-zero (volunteer-run, pro-bono lawyers, free complaints and public hearings) to funded efforts that commission independent studies. Treat the ranges as a menu, not a bill.

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## INTRODUCTION & FRAMEWORK

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### Why This Matters

Community action changes project outcomes in Ghana — and the levers are specific, so knowing which ones work is half the battle. Ghanaian law requires most significant projects to obtain an **environmental permit** from the **Environmental Protection Authority (EPA)** — backed, for the most damaging ones, by a full **Environmental Impact Statement (EIS)** — before they can begin, and it guarantees **public participation** at every stage of the assessment, including a **public hearing** where concerns are serious. The law gives any **aggrieved person** — which the regulations leave broad enough to include residents, community groups, and NGOs — the right to have their complaint **trigger the suspension of a permit** and a **right of appeal**. And Ghana's **1992 Constitution** guarantees the right to **administrative justice** and access to the **High Court**, and gives you a powerful watchdog in the **Commission on Human Rights and Administrative Justice (CHRAJ)**.

That is a real toolkit, in one of West Africa's more stable democracies with a genuinely active press and civil society. The

honest counterweight is that Ghana's economy leans heavily on **gold and other mining**, oil and gas, and large infrastructure; the state and powerful interests promote these hard; enforcement is uneven and local EPA offices are under-resourced; **customary land is controlled by chiefs and traditional authorities** who may benefit from a project; and — the defining crisis — **illegal small-scale gold mining ("galamsey")** has devastated rivers (the Pra, Ankobra, Birim and others), forests, and cocoa farmland, often with political protection, making some fights genuinely dangerous. Communities across Ghana — fighting mines (legal and illegal), oil and gas, dams, quarries, roads, logging, and projects threatening rivers, forest reserves, cocoa land, and health — have organised anyway, and while stopping a national-priority project outright is hard, delay, the suspension or refusal of a permit, tighter conditions, and forcing genuine assessment and hearings are all achievable.

**What "winning" realistically means.** Rarely a simple permanent government "no" to a promoted project — though a **permit refused or suspended**, or a **High Court** ruling, is exactly that when you get it. More often: an EIS sent back or a permit refused or suspended for defects (very often weak public participation or a defective assessment); conditions tightened; a project delayed until its economics or politics change; a district assembly or traditional authority persuaded to withhold support; a **CHRAJ** finding against an official; or genuine assessment and a public hearing forced where they were skipped. Each has happened. The realistic goal is to make the project slow, costly, and legally exposed — and to use the permit, public-hearing, aggrieved-person, CHRAJ, and court levers that Ghana actually provides, plus the organised community and traditional-authority pressure the country responds to.

## The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — pin down what is proposed, whether it needs a permit and a full EIS, which EPA office and sector regulator decide it, whose land it is, and the deadlines.
2. **Documentation** — build an evidence record strong enough for the public hearing, a CHRAJ complaint, and a High Court case.
3. **Local opposition** — organise a durable community movement, including the chiefs and traditional authorities, because sustained local pressure is what Ghana's system responds to most.
4. **Legal challenges** — use public participation, the public hearing, the aggrieved-person appeal and suspension route, CHRAJ, and the High Court.
5. **Media strategy** — generate coverage that raises the political cost of approval — Ghana's press is a real asset.

No single step wins alone. The combination — local and traditional-authority pressure plus participation, the permit and hearing process, and CHRAJ and the courts — is what works.

## Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Ghana's system leans toward mining and large projects, has weak and under-resourced enforcement, ties into a customary-land system where chiefs may benefit, and — with galamsey — includes genuinely dangerous, politically protected illegality. Assessing that honestly helps you choose the right tools: the strongest routes are usually a rigorous intervention in the **public participation and hearing**, a complaint as an **aggrieved person** to suspend the permit, a **CHRAJ** complaint, and — where a right is breached — the **High Court**, all combined with sustained community, traditional-authority, and media pressure. A tilt changes which lever works; it does not remove them all. Section 13 deals honestly with tilted situations, including galamsey, and the risks to defenders.

## How to use this guide

Read Sections 1–3 once. Then work Section 4 (Target Identification) immediately — it produces the facts every other step needs, above all your deadlines, whether a full EIS and hearing are required, which EPA office and regulator decide, and whose land it is. Sections 5–8 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you decide, honestly, whether and when to keep going.

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## HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. Ghana is a unitary constitutional democracy with a strong central government, elected **district assemblies**, and a parallel system of **traditional authority (chiefs/stools)** that controls most land. Environmental assessment is governed chiefly by the

**Environmental Protection Act, 2025 (Act 1124)** — which in early 2025 replaced the long-standing EPA Act 1994 (Act 490) and turned the Environmental Protection **Agency** into the Environmental Protection **Authority** with expanded powers — and the **Environmental Assessment Regulations, 1999 (LI 1652)**, which set out the EIA and permitting process. Power over a project is shared between the **EPA**, the **sector regulators** (the Minerals Commission for mining, the Petroleum Commission for oil and gas, the Forestry Commission, the Water Resources Commission), the **district assemblies**, and the **traditional authorities**, within a framework set by the **1992 Constitution**.

## The bodies that decide — and what each one controls

**The Environmental Protection Authority (EPA).** The central environmental regulator: it administers the permit system, conducts **screening**, reviews the EIS, runs the **public hearing**, and grants, refuses, suspends, or conditions the **environmental permit**. Under the new Act 1124 it also has expanded powers to investigate and even **prosecute** environmental offences (with the Attorney-General's authorisation). The EPA has **regional and district offices**, though local offices are often under-resourced. This is usually your central arena.

**The sector regulators.** These grant the underlying licence or lease and are often the promoters: the **Minerals Commission** (mining leases and small-scale licences), the **Petroleum Commission** (oil and gas), the **Forestry Commission** (forest and timber), the **Water Resources Commission** (water rights and river protection). A project typically needs both a sector licence and an EPA permit.

**The district assembly.** The elected local government (led by a government-appointed **District Chief Executive, DCE**) handles physical planning and development permits, local by-laws, and local politics; a district assembly's planning permit and its stance matter.

**The traditional authorities (chiefs / stools).** Distinctively, most Ghanaian land is **customary land** held by **stools/skins** in trust for the community, administered by chiefs, with the **Lands Commission** and the **Office of the Administrator of Stool Lands** involved. Chiefs and traditional councils are central actors — they can grant or withhold land, mobilise or divide a community, and lend or deny legitimacy. Whether the chief is with you or against you often shapes the whole fight.

**Which one is "yours"?** Ask: does the project need an **environmental permit**, and a full **EIS** (or only a preliminary assessment)? Which **EPA office** and which **sector regulator** (Minerals, Petroleum, Forestry, Water) decide it? Is it on **stool/customary land**, and what is the chief's position? Does it affect a **forest reserve**, a **river**, or **cocoa/farming land**? Pinning this down is Step 1, and it decides the deadlines, the decision-makers, and which grounds apply.

## How a decision is actually made — the journey of a project

For a project that needs an environmental permit, the LI 1652 path is roughly:

1. **Registration and screening.** The proponent registers the undertaking with the **EPA** and applies for a permit. The EPA carries out **screening** and issues a **screening report** deciding whether the project needs **no further assessment**, a **Preliminary Environmental Report (PER)**, or a **full EIA/EIS**. Public concerns are a key criterion at screening, so getting objections in early matters.
2. **Scoping and the EIS.** For a full EIA, the proponent must **advertise the project in a national and a local newspaper**, prepare a **scoping report**, and then the **Environmental Impact Statement (EIS)** — and the **affected and interested parties are to be consulted at every stage**. You may comment on the scoping report, make field visits, and comment on the **draft EIS**.
3. **The public hearing.** Where the EPA considers there is significant public concern or impact, it holds a **public hearing** before an appointed **panel**, at which people make submissions. This is a formal, powerful moment — a strong public hearing can lead the EPA to send the EIS back or refuse the permit.
4. **Decision.** After reviewing the EIS (and the hearing panel's recommendations), the EPA **grants the permit, requests further information, or rejects the application**. The law sets a **90-day** decision target (with exceptions for hearings, a PER, or EIS preparation). An environmental permit is valid for **18 months** (a fresh application is needed if the project has not started).
5. **Aggrieved persons, suspension, and monitoring.** Distinctively, a complaint from an **aggrieved person** can **trigger the suspension** of a permit, and the EPA can suspend a permit if the environment fundamentally changes. Once operating, the project submits environmental management plans and is monitored; breaches are an enforcement — and litigation — opening.

Beyond the EPA permit, the project needs its sector licence (mining lease, etc.), a district planning permit, and lawful access to the land (often through the stool and the Lands Commission).

## The rulebook — the policies that decide the outcome

- **The Environmental Protection Act 2025 (Act 1124) and LI 1652.** Was a permit and the right level of assessment required, the process followed, public participation held at every stage, and a hearing convened where warranted? The core battleground.
- **The Minerals and Mining Act 2006 (Act 703) and its rules.** For mining: was the lease/licence lawful, and (for small-scale) limited to registered Ghanaian citizens? Note LI 2462 (2022) controversially allows some **mining in forest reserves** — a live, contested issue.
- **Water, forest, and land law.** The Water Resources Commission Act, forestry law, and the customary-land and Lands Commission rules add separate grounds and consents.
- **The 1992 Constitution.** The rights to administrative justice (Art. 23) and to go to the High Court to enforce rights (Art. 33), plus the environmental duties of the state.

## Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. **Gold accounts for the bulk of Ghana's mineral exports and mining is a huge share of GDP**; the state, sector regulators, and powerful investors promote mining, oil, and infrastructure hard; chiefs and local actors can gain from granting land; and galamsey has powerful, sometimes politically protected, backers. None of this is inherently illegal, but it explains the default lean toward approval — and why the community's best levers are participation, the hearing, the aggrieved-person and CHRAJ routes, the courts, and organised local, traditional-authority, and media pressure, rather than trust that the process leans your way.

## The overseers — who watches the decision-makers

- **CHRAJ (Commission on Human Rights and Administrative Justice)** — a constitutional body that investigates **administrative injustice, human-rights violations, and corruption** by officials; it has investigated galamsey and officials, and a CHRAJ finding carries real weight.
- **The High Court** — enforces constitutional and administrative rights, can quash an unlawful EPA or agency decision (judicial review), and hears public-interest cases; Ghana has an active tradition of such litigation.
- **The Auditor-General and Parliament's committees** — audit public money and scrutinise the sector.
- **The Water Resources Commission and Forestry Commission** — sector watchdogs for rivers and forests.
- **A free and active press and civil society** — Ghana's media and anti-galamsey coalitions are genuine watchdogs and amplifiers.

Naming the right body signals you understand the system, and getting CHRAJ, the hearing panel, or the High Court engaged at the right moment can change a project's whole trajectory.

## QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Ghanaian and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for Ghana sits inside the table: the **public hearing** and the **aggrieved-person suspension route**, plus **CHRAJ** and the **High Court**, make the permit system genuinely challengeable — and Ghana's active press is a real force multiplier — but a project the state or powerful mining interests treat as a priority, especially amid the galamsey emergency, is a hard, sometimes dangerous fight, so combine every lever with durable local and traditional-authority pressure.

### Individual Step Success Rates

| Approach                    | Success Rate | Timeline    | Cost (GHS)   | What "Success" Means                      |
|-----------------------------|--------------|-------------|--------------|-------------------------------------------|
| Documentation only          | 5-10%        | 3-4 months  | 500-15,000   | Project slowed; public better informed    |
| Local opposition only       | 20-30%       | 6-24 months | 2,000-50,000 | Local pressure; EPA/assembly takes notice |
| Public participation only   | 10-20%       | 1-3 months  | 500-8,000    | On record; can shape screening/EIS        |
| Public hearing intervention | 20-35%       | 2-6         | 1,000-       | EIS sent back; permit refused/conditioned |

|                                                  |        |              |                |                                                                    |
|--------------------------------------------------|--------|--------------|----------------|--------------------------------------------------------------------|
|                                                  |        | months       | 20,000         |                                                                    |
| <b>Aggrieved-person complaint (suspension)</b>   | 20-35% | 3-12 months  | 0-10,000       | Permit suspended; review triggered                                 |
| <b>CHRAJ complaint</b>                           | 15-30% | 6-24 months  | 0-5,000        | Finding of administrative injustice; leverage                      |
| <b>High Court (judicial review) only</b>         | 25-40% | 12-36 months | 5,000-150,000  | Decision quashed or sent back                                      |
| <b>Media only</b>                                | 15-25% | 2-6 months   | 500-20,000     | Public knows; press pressure (strong in Ghana)                     |
| <b>Docs + local opposition</b>                   | 30-40% | 9-24 months  | 5,000-70,000   | Pressure plus tightened conditions                                 |
| <b>Local + traditional authority + political</b> | 35-50% | 9-30 months  | 5,000-70,000   | Chief/assembly resistance; support withheld                        |
| <b>Hearing + aggrieved-person + CHRAJ</b>        | 35-50% | 6-24 months  | 5,000-80,000   | Permit refused/suspended; review                                   |
| <b>All steps combined</b>                        | 45-60% | 12-36 months | 20,000-300,000 | Permit refused/suspended, project delayed/redesigned, or withdrawn |

**Key insight:** all steps together are several times more effective than any single one — and in Ghana the mix that works leans on **local + traditional-authority pressure + the public hearing + the aggrieved-person route + CHRAJ + the courts + a strong press**, not any single lever. The distinctive Ghanaian advantages are that a public hearing and an aggrieved-person complaint can directly stall or suspend a permit, that CHRAJ is an accessible constitutional watchdog, and that the press and anti-galamsey civil society are unusually active.

*A note on legal cost: public participation, the public hearing, an aggrieved-person complaint, and a CHRAJ complaint are free or very low-cost. The High Court costs more, but public-interest lawyers and NGOs take strategic cases, and legal aid exists. The main unavoidable cost is good expert evidence (a hydrologist, or water-testing for mercury/cyanide) where the case turns on technical proof — and, in galamsey contexts, on personal safety.*

## Effectiveness Visualization

SUCCESS PROBABILITY (permit refused/suspended, project delayed/redesigned, or withdrawn)

FAVOURABLE SCENARIO (a strong hearing case, chief and community united, active press):

All steps combined: 45-60%  
Hearing + aggrieved + CHRAJ: 35-50%  
Local + traditional + political: 35-50%  
Single step: 5-35%

TILTED SCENARIO (a priority/mining project, galamsey backing, risk):

All steps combined: 30-45%  
Hearing/aggrieved-person: 20-35%  
Local + traditional: 20-35%  
Single step: 3-15%

**How to read this honestly.** In Ghana, the strongest single legal facts are usually a **defective public-participation or hearing process** or a **flawed EIS**, raised through the hearing and the **aggrieved-person suspension** route, or an **administrative-justice** breach that **CHRAJ** or the **High Court** will act on. Where a project is a priority pushed by the state or powerful mining interests — especially amid galamsey — even a strong case is harder, the fight can run for years, and it can be dangerous. But even a "loss" that delays a project, forces a real hearing, suspends a permit, or wins tighter conditions is a real outcome — and Ghanaian campaigns and litigation have reshaped projects and forced policy responses even when a development was not permanently stopped.

## Step Importance Ranking (When All Combined)

1. **Local opposition (with the traditional authority)** — a durable community movement, ideally with the chief, is the engine; Ghana's system responds to organised local and traditional-authority pressure.
2. **Documentation** — the raw material for the hearing, a CHRAJ complaint, and any court case.
3. **The public hearing and the aggrieved-person route** — the distinctive routes that can stall or suspend a permit.
4. **CHRAJ and the courts** — the constitutional watchdog and the High Court that enforce rights and quash unlawful decisions.
5. **Media and political pressure** — the amplifiers, unusually strong in Ghana, that move the EPA, assemblies, and the

government.

Winning Ghanaian campaigns combined a durable community organisation (often with the chief), a rigorous evidence file, a strong public-hearing intervention, an aggrieved-person or CHRAJ complaint and, where needed, a High Court case, sustained press, and political pressure — no single track alone.

## What Ghanaian Campaigns Actually Show

A few patterns recur across documented Ghanaian fights. **The public hearing and the aggrieved-person route genuinely bite** — a strong hearing can send an EIS back or lead to refusal, and an aggrieved-person complaint can trigger the suspension of a permit, so these are the levers to use first. **CHRAJ and the courts are real** — CHRAJ investigates administrative injustice and has taken on officials over galamsey, and Ghana has an active tradition of High Court public-interest litigation against unlawful decisions. **The press and civil society move the politics** — Ghana's free media and anti-galamsey coalitions have repeatedly forced the issue onto the national agenda and prompted government action. **But galamsey is a dangerous, politically protected crisis** — illegal mining has polluted major rivers with mercury and cyanide and destroyed cocoa land, often with powerful backers, so those fights carry real risk. And **the chief matters enormously** — whether the traditional authority is with you or against you often decides the fight. The through-line is that Ghana rewards communities that combine durable local and traditional-authority organisation with the hearing, aggrieved-person, CHRAJ, court, and media levers.

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## STEP 1: TARGET IDENTIFICATION

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You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine.

### Core Questions You Must Answer

#### Question 1: What Exactly Will Be Destroyed?

Get the specifics, not impressions: exact location and footprint, project type and size, what is on the land now (homes, cocoa and food farms, rivers, forest reserve, sacred sites), and what the project would do to it. Obtain the **EIS** (and the scoping report) from the **EPA** — it is public, and it is where the proponent, on the record, describes the impacts and admits the residual ones. List every admitted impact with its page reference — that list is the skeleton of your hearing submissions and any later case. Pay special attention to **water** (the Pra, Ankobra, Birim and other rivers are the front line), **mercury and cyanide** for mining, **forest reserves**, and **cocoa and farmland**.

#### Question 2: Who Has Decision-Making Power?

Identify precisely: (a) whether the project needs a full **EIS** or only a preliminary assessment; (b) which **EPA office** decides the permit; (c) which **sector regulator** (Minerals, Petroleum, Forestry, Water) grants the underlying licence; (d) which **district assembly** grants the planning permit; and (e) whose **stool/customary land** it is and the **chief's** position. Name the officials and the traditional authority. Because Ghana's live levers are the hearing, the aggrieved-person route, CHRAJ, and the courts, know both the decision-makers and the grounds that apply.

#### Question 3: What Specific Action Stops It?

A project can be stopped or reshaped at several points: an EIS **sent back** or a permit **refused or suspended** (very often after a strong hearing or an aggrieved-person complaint); a refused **sector licence** or **district planning permit**; a **chief or assembly** withholding land or support; a **CHRAJ** finding; a **High Court** order quashing an unlawful decision; or political defeat. Map the points and aim at the ones Ghana actually responds to.

#### Question 4: When Is the Decision Final?

Diarise the deadlines: the **screening, scoping**, and **draft-EIS** comment windows (watch the newspaper advertisements — they trigger your chance to comment); the **public hearing** date; the EPA's **90-day** decision target; and the litigation clocks — **judicial review** in the High Court should be sought **promptly** (there are time limits, so act fast once a decision issues), and an **appeal** by an aggrieved person has its own timing. Confirm the exact deadlines with a lawyer. Missing them can forfeit the route.

#### Question 5: Are There Documented Financial Interests or Systemic Pressures?



Map, factually and carefully: who profits, which companies (and parent companies, and any politically exposed persons) are behind the project, whether a mining lease or land changed hands before the proposal — including licences rushed through near an election or a change of government — and whether any decision-maker or chief has a tie to the developer. Use public sources — the companies registry, the Minerals Commission's licence records, officials' asset declarations, and procurement records. Build a dated, sourced timeline. Keep it rigorous; Section 11 covers doing it safely — and note that in galamsey contexts this work can carry real personal risk.

**Output of Step 1:** a one-page fact sheet with the project's exact description, the EPA office and sector regulator, whether a full EIS/hearing applies, the land and the chief's position, the specific act or lever to pursue, every deadline, and the money map.

## Worked example: which lever is actually open

Suppose a gold mine is proposed near a town, on cocoa-farming stool land, discharging toward a river the town drinks from. Working the questions: **Q1** — the EIS admits impacts on the river (turbidity, possible mercury/cyanide), loss of cocoa farmland, and resettlement of some households. **Q2** — as a mine it needs an **EPA permit and a full EIS**, a **Minerals Commission** lease, a **district planning permit**, and land through the **stool**; the **chief's** position is pivotal. **Q3** — the live levers are: strong **public participation and a public hearing**; an **aggrieved-person** complaint to suspend the permit; scrutiny of the **water and mercury/cyanide** analysis; a **CHRAJ** complaint if the process is unjust; and, if the permit is unlawful, **judicial review** in the High Court. **Q4** — you diarise the newspaper-advertised comment windows, the hearing, and the 90-day decision. **Q5** — the Minerals Commission records show the lease-holder and when it was granted. In an afternoon you know which levers are open — and that the hearing, the aggrieved-person route, CHRAJ, and the courts, plus the chief, not a single dramatic move, are your strongest cards.

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## STEP 2: DOCUMENTATION

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Documentation separates a campaign the EPA, CHRAJ, and the courts take seriously from one dismissed as complaint. It is also what your hearing submissions, a CHRAJ complaint, and any court case all live or die on — and in Ghana, documenting **water and mercury/cyanide contamination**, impacts on **forest reserves and cocoa/farmland**, and the **adequacy of the participation and hearing** is especially decisive. Build three layers. (In galamsey contexts, keep sensitive material secure and mind your safety.)

### The Three Documentation Layers

#### LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project — you cannot show harm without a baseline, and once ground is broken the "before" is gone. Start the day you learn of the project.

**Water above all.** Document the current state of rivers, streams, and drinking-water sources — quality (turbidity, colour) and use — using any available data and your own dated records and photographs. Where mining is involved, document baseline conditions carefully, because **river pollution with mercury and cyanide** is the signature Ghanaian mining harm and the front line of the galamsey crisis. A simple, dated photo record of a clear river is powerful evidence once it runs brown.

**Land, forest, and farms.** Document forest and any **forest reserve**, protected species, and — critically — **cocoa and food farms** and the livelihoods they support, using your own mapping and farm records. Cocoa is central to Ghana's economy and identity, and the threat to it moves the nation. Record the **customary land** position and the community's use.

**Health and community.** Document the human baseline — nearby homes, schools, clinics, water sources, the population, and existing health conditions — because health impacts (from contaminated water especially) strengthen both the case and the human story.

**How to hold it.** Keep everything dated, sourced, geo-referenced, and backed up in a shared folder (and, given galamsey risks, in more than one safe place). A well-organised baseline is more useful than a merely large one.

#### LAYER 2: IMPACT ANALYSIS

Show what the project would do to that baseline. Your main text is the proponent's **EIS** (or the PER where that is all there

is) — read it critically and catalogue four things:

1. **Admitted impacts** — every harm the EIS itself concedes, with page references. Unarguable.
2. **Water, mercury, and cyanide impacts** — scrutinise the treatment of river and drinking-water impacts and of contamination especially; underestimation here is both common and decisive, and river pollution is Ghana's central environmental issue.
3. **Underestimated or omitted impacts** — downplayed effects on cocoa land, forest reserves, and health, and **cumulative impacts** with other mining and projects in the same catchment (a recurring, powerful gap, especially where galamsey is already degrading a river).
4. **Participation and hearing adequacy** — whether the newspaper advertisements were properly placed, the affected parties genuinely consulted at every stage, and a **public hearing** held where it should have been. A defective participation or hearing process is a documented ground, and the aggrieved-person route depends on showing it.

**Get expert eyes on it.** A critique carries far more weight when a qualified professional — a hydrologist, water chemist, ecologist, or physician — has reviewed and signed it, even pro bono. Universities (Ghana has strong ones), environmental NGOs with technical staff, and independent scientists are sources. For water and mercury especially, an independent test result can be decisive. The goal is a written impact critique that reads as technical, that the EPA, CHRAJ, and the High Court can act on.

## LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human terms, because that is what moves neighbours, the EPA, and the courts. Document:

- **Health** — the specific risks (water contamination, mercury, dust) to nearby residents, drawing on recognised standards and, where possible, a clinician's assessment; contaminated drinking water is a documented, powerful Ghanaian issue.
- **Economy and livelihoods** — effects on cocoa and food farming, fishing, and the water livelihoods depend on. Quantify it — the loss of cocoa land is both a household catastrophe and a national concern.
- **Community, land, and culture** — the loss of farmland, a river, sacred sites, and community cohesion, and the strain on the town.

Package this layer twice: a rigorous version for the hearing, CHRAJ, and any court, and a plain-language one-page version for neighbours and the press.

## How to Structure Your Documentation

- **Phase 1: Baseline (Months 1-2)** — assemble the "before" record (water and cocoa land first) before ground is broken; photograph the clear river now.
- **Phase 2: Impact (Months 2-3)** — dissect the EIS and the participation/hearing record; line up expert review before the hearing so your critique is ready.
- **Phase 3: Health/Economic (Months 3-4)** — quantify the human and economic stakes and package them.

## Common Documentation Pitfalls (What Fails)

- **Missing the advertised comment windows or the hearing** — watch the newspapers and file on time with your best evidence.
- **Neglecting water and cocoa** — these are the decisive, nationally resonant issues in Ghana; make them central and specific.
- **Ignoring the participation/hearing record** — the aggrieved-person and process grounds depend on documenting its flaws.
- **Only environmental data** — the EPA, CHRAJ, and courts respond to health, livelihood, and administrative-justice arguments too. Breadth wins.
- **No expert review** — an impact critique no qualified person has signed is easy to wave away, and water/mercury claims especially need it.
- **Ignoring the proponent's own admissions** — the EIS is a source of concessions. Quote it back, with page numbers.

## Documentation Budget Breakdown (GHS)

| Item                                       | Low (volunteer/pro-bono) | Higher (commissioned) |
|--------------------------------------------|--------------------------|-----------------------|
| Baseline data gathering (esp. water)       | 500–3,000                | 5,000–40,000          |
| Forest technical report (hydrology/health) | 0 (pro-bono)             | 10,000–20,000         |



|                                             |                |               |
|---------------------------------------------|----------------|---------------|
| Expert technical report (hydrology/health)  | 0 (pro bono)   | 10,000–80,000 |
| Independent water testing (mercury/cyanide) | 1,000–8,000    | 8,000–50,000  |
| Legal consultation on the file              | 0 (NGO/clinic) | 3,000–30,000  |
| Printing/outreach/travel                    | 500–5,000      | 5,000–30,000  |

Much can be done for near-zero with pro-bono experts and public data. Spend where a paid report materially strengthens a hearing, a CHRAJ complaint, or a court case — usually **independent water testing** for mercury/cyanide, or a hydrology or health report. One solid report on the decisive issue is worth more than five general ones.

## WHAT TO GATHER, AND WHERE TO FIND IT

Most of what wins a case already exists in public records. The job is knowing which record holds which fact, and pulling it before you need it. This section is the shopping list; it also points you to the sources this map links.

**Start at the EPA and the sector regulator.** In Ghana the official documents for a project — the registration, the screening report, the scoping report, the EIS, the permit and its conditions — are held by the **EPA**, and the underlying licence records by the **sector regulator** (Minerals, Petroleum, Forestry, Water). Check these; the legal clock often runs from the newspaper advertisements and the decisions here.

**The EIS and the participation/hearing record.** Get the proponent's EIS (or PER) as it is publicised — it is public, and it is where the proponent admits harm. The **participation and hearing record** is what you scrutinise for the aggrieved-person and process grounds.

**Baseline environmental data.** Water data from the **Water Resources Commission** and the Ghana Water Company; forestry data from the **Forestry Commission**; and academic and NGO studies (several document river pollution and galamsey harm).

**Ownership, licences, and money.** Company ownership from the **Registrar-General / companies registry**; mining leases and small-scale licences from the **Minerals Commission**; officials' asset declarations; and public-procurement records.

**How to force a document open.** Ghana's **Right to Information Act, 2019 (Act 989)** compels a public institution to release information it holds, within set periods, with an appeal to the **Right to Information Commission** and the courts if refused. Use the wording in Section 8E.

**CHRAJ.** The **Commission on Human Rights and Administrative Justice** can investigate and, in doing so, obtain documents and produce findings that support your case — a free, powerful route.

**Free and low-cost help.** Environmental and human-rights organisations and coalitions (Ghana has active anti-galamsey and public-interest groups) advise and litigate, and university law clinics and **Legal Aid** take strategic cases; **CHRAJ**, the **RTI** route, and the **public hearing** are free to approach.

**Tie it to the map.** The dots and layers here are your starting index — a mapped project points you to the EPA and the sector regulator, and the local-ally entries point you to the community groups, environmental and anti-galamsey organisations, and legal groups already working nearby. Pull that thread first, then follow it into the EPA, the registries, and the RTI requests above.

## Researchers for Hire, and Everyday Research Tools

If digging through corporate filings, agency files and environmental records is beyond a few volunteers, you can hire it out — and this lifts a real weight off novice activists. The field is **opposition research** (or, on the labour side, **corporate-campaign research** — the same methods unions use to expose an employer's finances and record, turned on a developer). For your side, seek **opposition-research firms**, **licensed private investigators** with paid records access, **investigative journalists and freelancers** (often the cheapest, and they publish what they find), **environmental-compliance auditors** to dissect a developer's regulatory record, and **public-records / freedom-of-information specialists** to pry files loose. The investigative tools they use — and that a determined activist can use directly — include **OpenCorporates** and **OCCRP Aleph** (company ownership and cross-border links, worldwide) and **DocumentCloud** (search and OCR large document dumps), with **SEC EDGAR**, **LittleSis** and **MuckRock** as United States examples; most countries have their own equivalents.

For everyday, subject-agnostic research, a small kit goes far: **AI assistants** — Claude.ai, ChatGPT, Google Gemini, and Perplexity for sourced answers — are excellent for explaining a law, summarising a document, or drafting, so long as you **always verify** what they tell you, because they can invent citations; **Google Scholar** and Google's advanced search operators for studies and buried files; and the **Wayback Machine** for pages a developer or agency has quietly deleted.

## STEP 3: BUILDING LOCAL OPPOSITION

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### Critical Insight About Organizing

Sustained, visible local pressure is the single biggest factor in whether a Ghanaian project is stopped or reshaped — because the levers that matter (the EPA taking public concern seriously at screening and the hearing, an aggrieved-person suspension, a district assembly or chief withholding support, a CHRAJ finding, political defeat) all respond to organised communities. Ghana has a strong tradition of community organising, a vibrant press, active civil society and church networks, and — distinctively — a powerful system of **traditional authority (chiefs and stools)** that can make or break a fight. Build on all of this.

Three principles carry special weight here: **legitimacy and rootedness** (a movement led by the affected community, and — where possible — backed by the **chief and traditional council**, is far harder to dismiss, and the chief's stance often decides the fight); **durability and unity** (Ghana's big fights are sustained over years, and developers use money, jobs, and selective benefits to split communities and buy chiefs, so unity is a strategic asset to guard); and **safety** (in galamsey contexts, protect leaders, keep actions lawful, and be aware that opposing politically protected illegal mining can be dangerous).

### PHASE 1: FOUNDATION (Months 1-2)

**Step 1a: Start with the most affected — and read the chief.** Reach the people whose water, farms, health, or land is most directly at stake, and assess the **chief's** position early, because the traditional authority is pivotal. Listen first: concrete local concerns (a river, cocoa farms, drinking water) motivate more than abstractions.

**Step 1b: Affinity groups by concern.** Let people plug in through what they care about — water and pollution, cocoa and farmland, health, forest, land and compensation. Different concerns reach different people.

**Step 1c: Form or strengthen the organisation, and engage the traditional authority.** Constitute a **community association or concerned-citizens group** with clear aims, and — crucially — engage the **chief and traditional council**: brief them, seek their backing, and, where they are with you, let them lead or co-lead. Where the chief is compromised, work through the assembly members, the churches, the farmers, and the youth, and be transparent about it. This organisation is the vehicle that coordinates the hearing intervention, files the aggrieved-person and CHRAJ complaints, and — with legal advice — brings the court case. Keep decisions transparent and collective; it protects legitimacy and resists the money that splits communities.

### PHASE 2: PUBLIC LAUNCH (Months 2-3)

**Step 2a: Community durbar / meeting.** Hold a public meeting or durbar (ideally with the chief) to inform, decide collectively, and mandate representatives; bring the maps, the EIS's own admissions, and the hearing/comment deadlines. A visible, united gathering — especially with the traditional authority — signals seriousness to the EPA and the press.

**Step 2b: Opposition materials.** One-page, factual, sourced materials (in English and the local language — Twi, Ewe, Ga, Dagbani, etc.); lead with water, cocoa, health, and land stakes and the deadlines. Include how to comment and how to take part in the **public hearing**.

**Step 2c: Mass participation and the hearing.** Coordinate **mass comments** at screening and on the draft EIS, and **strong, organised attendance and submissions at the public hearing** — the hearing is a decisive moment, and a well-prepared, united community showing carries real weight with the panel. Document the process for the aggrieved-person route.

**Step 2d: Media at launch.** Time it to the hearing/comment windows so coverage and the deadlines reinforce each other — Ghana's press is a powerful ally.

### PHASE 3: COALITION EXPANSION (Months 3-6)

**Step 3a: Organisation outreach.** Bring in national and regional environmental and anti-galamsey organisations (several

litigate and provide technical support), the churches and Christian Council, farmers' and cocoa-growers' groups, academics, and medical experts. Each adds credibility, reach, lawyers, and protection.

**Step 3b: Coalition agreements.** Agree roles, spokespeople, and messaging clearly before disagreements arise, and settle how decisions are made — including how the community and the traditional authority relate. Who represents the community at the hearing? Who instructs the lawyer? Who files with CHRAJ? Who speaks to the press? Settling this early prevents the splits — and the buying-off — that sink movements.

**Step 3c: Coordinated public work.** Joint hearing submissions, a joint aggrieved-person and CHRAJ complaint, shared experts and lawyers, shared costs, and a coordinated approach to the EPA, the district assembly, the sector regulator, and the national government.

## PHASE 4: SUSTAINED PRESSURE (Months 6-12)

**Step 4a: Political and traditional pressure.** Lobby the district assembly and the DCE, the regional minister, and MPs for a refusal or withheld support; keep the chief and traditional council engaged; press the EPA and the sector regulator. In Ghana, a chief, assembly, or the national anti-galamsey mood turned against a project matters a great deal.

**Step 4b: Public actions and media (ongoing).** Lawful demonstrations and peaceful protest are a constitutional right; keep them orderly and safe (especially near galamsey). Steady, sustained press coverage keeps the issue alive and signals durability — use it heavily, as Ghana's media is a real force. Feed the story new pegs — the EIS, the hearing, the aggrieved-person complaint, the CHRAJ complaint, the court case.

**Step 4c: Prevent failure points.** Movements fade or fracture when they miss the comment/hearing windows, rely on sentiment over evidence, are split by money and selective benefits (including a bought chief), or peak too early. Diarise every deadline, build the file, decide collectively and transparently, guard unity, protect people, and pace to the decision — which can run for years.

## Worked example: a community that unlocks the strong levers

A town learns a mine will threaten the river it drinks from and its cocoa farms. A wave of anger and social-media activity appears — real energy, no leverage. What converts it into force happens in the first weeks and is deliberately unglamorous. First, the community **engages the chief and traditional council** and, finding them supportive, organises a durbar and a **concerned-citizens association** — because the chief's backing and a united community are decisive in Ghana. Second, it **documents the clear river now** and drives **mass comments and a strong showing at the public hearing**, recording every flaw in the process. Third, because a complaint from an **aggrieved person can suspend a permit**, it prepares that complaint on the water and participation defects. Fourth, it brings in a **water chemist** to test for mercury and a lawyer, and lines up a **CHRAJ** complaint. By the time the EPA decides, the community can intervene powerfully at the hearing, trigger a suspension as aggrieved persons, complain to CHRAJ, and — if the permit is unlawful — seek **judicial review** — all amplified by the press. None of that required a court win yet, but it made every later lever real. The lesson generalises: **in Ghana, the chief you bring on side, the hearing you prepare for, and the aggrieved-person complaint you ready in month one are what make the CHRAJ and court levers real by month eight.**

## Opposition Building Budget: Year-Long Campaign (GHS)

Highly variable. A lean, community-run movement operates on **a few thousand to tens of thousands of cedis** (durbars, materials, travel, the hearing), much of it volunteer. A campaign expecting litigation should budget for **expert reports and water testing (10,000-80,000)** and **legal costs** — though the hearing, aggrieved-person, and CHRAJ routes are free, and NGOs, clinics, and Legal Aid take strategic cases. Ghanaian movements typically fund the legal stage through **community contributions, church and NGO support, and coalition cost-sharing**. Keep transparent, collective accounts — it protects legitimacy and resists the money that splits communities and buys chiefs.

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## Hiring Help to Run the Campaign

You need not carry the whole campaign yourselves. A whole industry runs opposition campaigns for hire — the visible turnout at hearings, the public comment, the messaging and the media — known as **grassroots-for-hire** or **public-affairs / grassroots-advocacy** consulting. It usually serves whoever pays, most often the deep-pocketed side, but you can hire the same muscle for yours: **public-interest communications and PR firms, campaign and field-organising firms** that run turnout and canvassing, and, if the fight becomes a local vote, **ballot-measure consultants**. People outside that niche can carry a piece too — a **PR or crisis-communications firm, a campaign consultant, a digital-advocacy shop**, or a seasoned **community organiser** — taking weight off exhausted volunteers who feel they are

carrying the opposition alone. Two rules hold. Hire them **transparently**, and never let anyone fake a grassroots front: that is *astroturfing* — dishonest, and ruinous if exposed; the aim is to amplify a real community, not fabricate one. And mind your **setting** — where public campaigning is repressed or dangerous this market may be absent and a visible "show" perilous, so favour trusted journalists and international allies over hired campaigners, and never let paid help expose your people.

## STEP 4: LEGAL CHALLENGES

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Ghana gives communities real legal tools — public participation, the public hearing, the aggrieved-person appeal and suspension route, CHRAJ, and the High Court — and choosing the right one is essential. Three tracks — participation and the hearing, oversight (aggrieved-person and CHRAJ), and the courts.

### TRACK 1: PARTICIPATION AND THE PUBLIC HEARING (the front door)

- **Comments at screening and on the EIS.** Public concern is a criterion at **screening**, so submit objections early; then comment on the **scoping report** and the **draft EIS**, and take part in **field visits**. It builds the record and can shape the assessment.
- **The public hearing (the decisive moment).** Where the EPA holds a **public hearing**, prepare and deliver strong, organised submissions to the **panel** — on the water and health impacts, the flaws in the EIS, and the community's opposition. A powerful hearing can lead the EPA to **send the EIS back or refuse the permit**, and the panel's recommendations feed the decision. Push for a hearing to be held if the EPA has not scheduled one, given the significant public concern.

### TRACK 2: OVERSIGHT — AGGRIEVED PERSON AND CHRAJ (the leverage route)

- **The aggrieved-person complaint (a distinctive lever).** Under LI 1652, a complaint from an **aggrieved person** — broad enough to include residents, groups, and NGOs — can **trigger the suspension of a permit**, and the EPA can suspend a permit where the environment fundamentally changes. Lodge a documented complaint on the harm and the defects; it is a direct, low-cost route to stalling a project. An aggrieved person also has a **right of appeal** against EPA decisions.
- **A CHRAJ complaint.** The **Commission on Human Rights and Administrative Justice** investigates **administrative injustice, human-rights violations, and corruption** by officials. A complaint can produce a finding that the EPA or a regulator acted unlawfully or unfairly, or that officials are complicit (as CHRAJ has examined in *galamsey* matters) — free, and real leverage for the politics and any court case.

### TRACK 3: THE COURTS (the decisive route)

- **Judicial review in the High Court.** Challenge the **lawfulness of the EPA permit** or a regulator's decision — for a defective process, a failure to hold a required hearing, an unlawful assessment, or a breach of administrative-justice rights — and ask the High Court to **quash** it and, where needed, order it be retaken. Seek it **promptly**. Ghana has an active tradition of such public-interest litigation.
- **Enforcement of fundamental rights (Art. 33).** Where a constitutional right (a clean environment as part of life and dignity, administrative justice) is breached, you can go to the **High Court** to enforce it.
- **An injunction.** Ask the court to **restrain** the project from starting (or continuing) pending the case, so irreversible harm — a poisoned river — does not occur first.
- **Civil claims.** Where harm has occurred, a civil claim (nuisance, negligence) for damages and an injunction may be possible.

## The three legal challenge types

### TYPE 1: PARTICIPATION + HEARING (the front door)

Comments at screening and on the EIS, and a strong public-hearing intervention — the source of your best procedural grounds and a direct route to refusal.

### TYPE 2: AGGRIEVED-PERSON + CHRAJ (the leverage route)

A complaint that can **suspend the permit**, and a CHRAJ investigation that can find administrative injustice — free, and

powerful leverage.

### TYPE 3: THE COURTS (the decisive route)

Judicial review and rights enforcement in the High Court, with an injunction — Ghana's sharpest legal tools where a decision is unlawful.

## Legal Strategy Decision Tree

1. **Is participation open / a hearing scheduled?** → Comment now and **prepare a strong hearing submission** (or push for a hearing).
2. **Is there harm or a defective process?** → Lodge an **aggrieved-person complaint** to suspend the permit, and consider **CHRAJ**.
3. **Is the process unjust or an official complicit?** → File a **CHRAJ** complaint.
4. **Has an unlawful permit/decision issued?** → Seek **judicial review** in the High Court **promptly**, with an **injunction**.

## Litigation Success Factors

The right ground (a defective hearing or participation; a flawed EIS; an administrative-justice breach; an unlawful licence); a documented record (especially of the participation/hearing flaws); standing (an aggrieved person, or the broad public-interest standing Ghanaian courts recognise); a rigorous, expert-backed evidence file (water and mercury above all); prompt filing; and an injunction to prevent irreversible harm. Missing any one weakens the case.

## What to Avoid: Legal Failures

Missing the advertised comment windows or the hearing; failing to document the participation/hearing flaws; relying on sentiment rather than a specific defect; delaying judicial review past the time limit; and, in gamamsey contexts, litigating without attention to the safety of leaders.

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## TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when it is aimed at a specific legal ground. Here is how the records you gathered map onto the arguments that most often work in Ghana — so you file the right fact against the right ground.

**A defective public participation or hearing → EIS sent back / permit refused / judicial review.** Feed it with: your record of missing or improper newspaper advertisements, inadequate consultation, or a hearing that should have been held and was not.

**A flawed or incomplete EIS → sent back / refusal.** Feed it with: your expert critique of the water, mercury, cumulative-impact, and health analysis, and the EIS's own gaps.

**Water and river pollution (mercury/cyanide) → aggrieved-person suspension, CHRAJ, and court.** Feed it with: baseline and dated evidence (photos, tests) of the threat to the river and drinking water.

**Loss of cocoa and farmland → hearing and court ground, and the human story.** Feed it with: farm records, the households affected, and the compensation shortfall.

**An administrative-justice breach or official complicity → CHRAJ / judicial review.** Feed it with: the unlawful or unfair conduct of the EPA, a regulator, or an official, documented from the record.

**Ignored cumulative impacts → EIS / hearing ground.** Feed it with: a map and list of the other mining and projects in the catchment and the EIS's silence on their combined effect.

The pattern: match one clean, documented defect to one clear ground, lead with the **participation/hearing** and **water** grounds, use the **aggrieved-person** route to suspend and **CHRAJ** to investigate, and reserve **judicial review** for a clean unlawful decision, with an injunction. A public-interest lawyer or NGO can tell you fast which ground is live.

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## STEP 5: MEDIA STRATEGY

Media is an unusually strong lever in Ghana — the press is free and active, and the galamsey crisis has made river pollution and cocoa loss front-page, national-emergency issues. Coverage raises the political cost of approval, protects the movement and its leaders (visibility can be a shield, which matters near galamsey), sustains momentum, and reaches experts and allies.

## How Journalists Actually Work

Reporters need a story with a hook, a human face, a conflict, and a document. Hand them the EIS's own damning admissions (quoted, with page numbers), a named community member whose water or cocoa farm is at stake, a clear deadline, and a striking image (the browning river, the destroyed farm). Make it easy, and never give a fact you cannot stand behind.

## The Newsworthiness Formula

Local stakes + a credible threat + a deadline + a David-and-Goliath frame + a visual = coverage. Ghanaian stories — polluted rivers, threatened cocoa, forest-reserve mining, and galamsey — draw strong national attention on exactly this formula; the river-and-cocoa angle in particular is a live national emergency.

## Know the Outlets That Cover This Beat

Map the national outlets and their environment/investigations desks, the strong regional and community radio (which reaches affected communities directly and is central in Ghana), and the anti-galamsey and investigative media. Build a contact list with names and beats.

## Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship with a journalist beats a dozen releases. Offer access — to the site, to affected community members, to your experts.

## Why media matters even when it doesn't make the front page

Coverage does quieter work: it reaches an expert who tests the water for free, a lawyer or NGO that will bring the case, an official at CHRAJ or the EPA, and it creates a dated public record that helps protect leaders who face real risk near galamsey. A steady drumbeat of accurate coverage moves the EPA, assemblies, and the government more reliably than one national splash — and Ghana's press and anti-galamsey coalitions have repeatedly forced national action.

## Sample Media Timeline

Launch with the comment/hearing windows; refresh at each milestone — the mass comments, the hearing, the aggrieved-person complaint, the CHRAJ complaint, the court case. Each is a fresh news peg.

## Media Measurement

Track coverage, but measure what matters: whether the EPA, CHRAJ, and assemblies are responding, whether the movement is growing and its leaders are safer, whether experts and allies come forward, and whether the politics around the project is shifting.

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## Amplifying at Scale — Media Help for Hire

Beyond pitching reporters yourselves, you can pay to spread the story at scale — different from a single advert or one call to a local outlet, and available at any reach from local to global. **Public-relations and communications firms** run earned-media campaigns — placing op-eds, orchestrating coverage, staging the media push; for the cause side, public-interest firms such as Fenton, BerlinRosen and M+R work for advocacy groups and unions, not only corporations. **Press-release / newswire distribution services** send a release across a wide network of journalists and outlets — PR Newswire, Business Wire and GlobeNewswire at the global, higher-budget end; EIN Presswire, PRWeb and eReleases far cheaper and nonprofit-friendly, some with cause-specific wires. And **digital and social amplification** shops run targeted paid campaigns and creator partnerships. Two rules: amplify a *true* story from a *real* community — never manufacture fake outrage; and where public visibility is dangerous, favour trusted journalists and international allies over paid amplification.



# EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated, and sourced. Submit important ones through the EPA's or agency's registry and keep dated proof of anything you file — Ghanaian deadlines (the comment windows, the judicial-review time limit) are real and proof of filing matters.

## 8A. Email to a reporter (story pitch)

**Subject:** [District]: community challenges [project] before [deadline] — documents attached

Dear [name],

A [project type] is proposed at [location, district]. The proponent's own environmental statement (EIS) admits [specific admitted impact, quoted, with page number], including impacts on [the River \_\_\_/cocoa farms/drinking water] that [community] depends on. The EPA comment window / public hearing is on **[date]**.

The community, [with the support of Nana \_\_\_, the chief,] organised as **[association]**, is making submissions at the hearing, [lodging an aggrieved-person complaint,] and preparing a CHRAJ complaint. The human stakes: [water/cocoa/health point].

I can connect you with community members and our experts, and arrange a visit. Could we talk this week?

[Name] · [Organisation] · [phone] · [email]

## 8B. Letter to a decision-maker (EPA / sector regulator / district assembly)

**Subject:** [Project] — [file/reference number]

Dear [the Executive Director, EPA / the sector regulator / the District Chief Executive]:

We write on behalf of [community / association] regarding [project] at [location]. We respectfully ask you to **[refuse/suspend the environmental permit / hold a public hearing / require a full EIS]** for the following reasons:

1. [Ground 1 — e.g. the EIS underestimates the threat to the River \_\_\_ and our drinking water.]
2. [Ground 2 — e.g. the affected communities were not consulted at every stage as LI 1652 requires.]
3. [Ground 3 — e.g. cumulative impacts with existing mining in the catchment were not assessed.]

We request a written response. We are ready to provide the underlying evidence.

[Signatories, community/association, contact]

## 8C. Submission / comment on the EIS (and at the public hearing)

**Submission on the EIS for [project], EPA reference [number]**

[Community / association] submits the following, within the comment period / for the public hearing: 1. **Water.** [Impacts on the River \_\_\_ and our drinking water, including mercury/cyanide risk, are underestimated; evidence attached.] 2. **Cocoa and farmland.** [Loss of cocoa and food farms and the livelihoods they support.] 3.

**Participation.** [The process was defective because [no proper advertisement / inadequate consultation / no hearing].] 4. **Cumulative impact.** [This project, with existing mining in the catchment, must be assessed together.]

We ask the EPA to **refuse the permit**, or at minimum require a full EIS, a public hearing, and strict conditions.

[Date, community/association, contact; attach evidence]

## 8D. Aggrieved-person complaint to the EPA (to trigger suspension)

**Subject:** Complaint by aggrieved persons — [project], permit/ref [number]

Dear [the Executive Director, EPA]:

We, [community / association / named residents] of [area], are **aggrieved persons** affected by [project] at [location]. We complain that [the project threatens our river and drinking water with mercury/cyanide / the permit was granted after a defective process]. Under the Environmental Assessment Regulations, we request that you **suspend the environmental permit** and review the undertaking, and that inspection and testing be carried out. We attach

[evidence]. We ask to be kept informed and reserve our right of appeal.

[Community/association, date, contact]

## 8E. Right to Information request (Act 989)

**Subject:** Request for information under the Right to Information Act, 2019 (Act 989)

Dear [the EPA / sector regulator]:

Under the **Right to Information Act, 2019**, we request: 1. the full EIS and permit file for [project]; 2. the screening report, the scoping report, and the public-participation and hearing record; 3. [specific data — water monitoring, the mining lease, the conditions of the permit].

Please provide these within the statutory period. If any part is refused, please state the specific legal basis; we reserve the right to appeal to the RTI Commission.

[Name/community, date, contact]

## 8F. Complaint to CHRAJ

**Subject:** Complaint of administrative injustice / official complicity regarding [project]

To the Commission on Human Rights and Administrative Justice:

We, [community / association] of [area], complain regarding [project] at [location]. [The EPA/regulator acted unlawfully or unfairly in [granting the permit without a hearing / ignoring our rights] / an official appears complicit in [unlawful mining].] We attach [evidence]. We request an investigation and findings, and ask to be kept informed.

[Community/association, date, contact]

## 8G. Press release (effective)

**FOR IMMEDIATE RELEASE — [date]**

**Community of [district] challenges [project] to protect the River \_\_\_ and cocoa farms**

[Association / community], [with the traditional council,] today made submissions against [project] at [location], citing [top two grounds], and [has lodged an aggrieved-person complaint / will go to the High Court] if the permit is granted. "[Short, human quote from an affected farmer]," said [name, role].

The proponent's own EIS admits [quoted impact]. The permit rests with the EPA; the hearing/comment window is [date]. [If relevant: the project threatens drinking water and cocoa land already under pressure from galamsey.]

**Contact:** [name, phone, email]. Photos, the full submission, and interviews available on request.

## 8H. Instruction to counsel (judicial review + injunction)

**Subject:** Proposed judicial review regarding [project]

Dear [counsel],

[Community / association / named residents] intend to seek **judicial review** in the High Court of the [EPA permit / regulator's decision] for [project], on the grounds that [no required hearing was held / the process was defective / the decision was unlawful / our administrative-justice rights were breached], and to seek an **injunction** to restrain the project pending judgment. We can provide: the participation/hearing record, water and mercury evidence, and expert reports. Please advise on the **time limit** (we must move promptly), standing, the injunction, and strategy.

[Date, signature]

## Important Caveat

Templates are starting points. Adapt every one to your real facts, cite the actual reference and dates, and — for anything heading to court — have counsel experienced in administrative and environmental litigation review it. Deadlines are real (the advertised comment windows; the hearing; the **judicial-review** time limit, which requires prompt action). Keep dated proof of everything you file, and — given galamsey risks — get advice on protecting the community's leaders.

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## IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

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Not everyone can build an association or run a multi-year campaign. If you have an afternoon a week, you can still do real damage to a bad project. In rough order of impact for the effort:

1. **Watch the newspapers and make submissions at the public hearing.** The proponent must advertise; when the hearing comes, a strong, factual submission to the panel — on water and cocoa above all — is your single highest-leverage move, and it can lead the EPA to refuse or send back the permit.
2. **Lodge an aggrieved-person complaint to the EPA.** A documented complaint on the harm and the process defects can **trigger the suspension of a permit** — a direct, free route to stalling a project.
3. **Document the clear river now.** A dated photo record of clean water is powerful once it runs brown, and it grounds your water case.
4. **Get the EIS and quote its worst admission back to the EPA.** The proponent's own words carry more weight than any outside claim.
5. **File a free CHRAJ complaint** if the process is unjust or an official is complicit. It can produce a finding and leverage without a lawyer.
6. **Bring in the chief.** Whether the traditional authority backs you often decides the fight; a supportive chief is worth more than a dozen letters.
7. **Send one accurate email to a reporter** (Section 8A) and request the file under the RTI Act (Section 8E). Ghana's press is a real force.

If you do only the first two, you have intervened at the decisive moment and given the EPA a documented reason to suspend the permit — and left a trail others can build on. That is a real contribution, not a token one.

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## WHEN THE SYSTEM IS TILTED

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Ghana's system leans toward mining and large projects, has weak and under-resourced enforcement, ties into a customary-land system where chiefs may benefit, and — with galamsey — includes genuinely dangerous, politically protected illegality. Being honest about this is how you pick the tools that actually work, and stay safe.

### What This Tilt DOES (and DOESN'T DO)

The tilt promotes extraction, under-resources local enforcement, and lets money and politics shape land and licences. It does **not** close the doors: the **public hearing** and the **aggrieved-person suspension** route can stall a permit; **CHRAJ** is an accessible constitutional watchdog; the **High Court** enforces rights and quashes unlawful decisions; and Ghana's **free press and anti-galamsey civil society** are genuine forces. The key is to combine them, move on time, and concentrate force where the tilt is weakest — the hearing, the water case, and administrative justice — while protecting your people where galamsey is involved.

### Reading Your Tilt: Responsive, Mixed, National-Priority

- **A clear water/participation defect, a supportive chief and active press.** Here the hearing, the aggrieved-person route, CHRAJ, the courts, and media all do real work.
- **Mixed.** A project the state wants but a district or community resists, or a divided traditional authority. Weight shifts toward organised community pressure, media, the aggrieved-person route, and a clean legal ground.
- **National-priority / powerful-interest project (or galamsey).** A big mine or a politically protected illegal operation. Assume enforcement is weak and the fight will be long and possibly dangerous; prepare the **hearing and water case, the aggrieved-person and CHRAJ routes, the High Court, sustained press, and strong protection for leaders**. Even here, delay, suspension, a forced hearing, and national pressure are achievable — Ghana's anti-galamsey mobilisation has forced real government responses.

### Documented Ghanaian Dynamics

The record shows both the wall and the way through. Ghana strengthened its framework in 2025 with the new **Environmental Protection Act (Act 1124)**, giving the EPA power to **prosecute** environmental offences, and courts

have delivered high-profile galamsey convictions — signs the system can bite. **CHRAJ** has investigated officials over illegal mining, and Ghana has an active tradition of **High Court public-interest litigation**. But galamsey has **polluted the Pra, Ankobra, Birim and other rivers** with mercury and cyanide and destroyed cocoa land, often with **political protection**, and enforcement remains uneven and local EPA offices under-resourced — and defenders confronting protected illegal mining face real danger. The recurring, sober lesson is that this terrain can be dangerous, and protecting leaders is part of strategy.

## Assessment Framework — Determine Your Situation

Ask: Is the participation/hearing defective (a strong ground)? Is water/river pollution central (nationally resonant)? Is cocoa/farmland at stake? Is the chief with you or against you? Is CHRAJ or the High Court a live route? Is the project a priority or galamsey-linked (a harder, more dangerous fight)? Are leaders at risk (plan protection)? The answers tell you whether to lead with the hearing, the water case, the aggrieved-person route, CHRAJ, or the courts — usually a combination.

## Direct Action: Factual Information (Descriptive, Not Prescriptive)

Ghanaian movements rely on durbars, demonstrations, and peaceful protest, which are constitutional rights and a strong tradition (the anti-galamsey demonstrations drew national attention), alongside the legal, CHRAJ, and hearing routes. But confronting galamsey and politically protected mining has at times been dangerous, and protest can meet a heavy response. Know the law, prioritise safety and the protection of leaders, keep actions lawful and orderly, and get legal advice before anything that could carry legal or physical risk. This guide notes such tactics exist; it does not advise breaking the law, and the movement's safety and credibility are assets worth protecting.

## Honest Assessment

Tilted fights are harder, some are lost, and galamsey contexts can be genuinely dangerous. But "harder" is not "hopeless" — the hearing, the aggrieved-person route, CHRAJ, the High Court, a free press, and durable community and traditional-authority pressure have suspended permits, forced hearings, won convictions and policy responses, and delayed and reshaped projects, and even an ultimate loss often buys years of delay and an organised, experienced community. Concentrate force where the tilt is weakest, protect your people, and settle in for a long campaign if the stakes justify it.

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# WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

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Most bad decisions are lawful decisions you disagree with. But capture is real in Ghana — the galamsey crisis is shot through with it — and it does not look the same in every institution. Read your specific situation actor by actor, because the type of capture changes which lever works — and, sometimes, tells you a lever is closed. Handle it carefully: reckless public accusations can expose you to defamation liability and, in galamsey contexts, to real danger.

**The EPA and the sector regulators.** The pressure point: the regulators that **promote** mining, oil, and forestry sit close to the bodies that license and assess them, and local offices are under-resourced and, the research suggests, sometimes steer clear of dangerous illegal-mining sites. Signs: a rushed permit, an EIS waved through, no hearing where there should be one, licences issued in a rush near an election. Lever: the LI 1652/Act 1124 rules, the participation/hearing record, CHRAJ, and the High Court.

**The chiefs and traditional authorities.** Distinctively, chiefs control customary land and can be **bought** — a compromised chief who grants land to a miner is a documented galamsey dynamic. Signs: a chief's sudden support, quiet land deals, benefits flowing to the stool. Lever: work through the assembly, the churches, the youth, and the farmers, and expose the process through the record and the press — carefully.

**District and political officials.** Capture here runs through patronage and galamsey's powerful, politically protected backers. Signs: an official or politician tied to a miner, protection for illegal operations, a rushed planning permit. Lever: CHRAJ, asset declarations, the Auditor-General, and — for serious matters — the Office of the Special Prosecutor and EOCO.

**The companies and galamsey financiers.** Watch for leases quietly acquired before a project is public, opaque ownership, politically exposed backers, and the **financing and protection of illegal mining**. The Minerals Commission and companies registry surface ownership; recent high-profile prosecutions show these networks can be exposed.

**The courts and "national interest."** Ghana's courts are relatively independent and have delivered galamsey convictions and public-interest rulings, but the wider system faces delay and pressure, and "development" framings grant discretion. Treat the High Court as a genuine but not guaranteed route, and where genuine judicial corruption appears, it is a matter for the control bodies.

**How to act on it, safely.** Document from public sources before you speak. Route serious allegations through the proper bodies — **CHRAJ**, the **Auditor-General**, the **Office of the Special Prosecutor** and **EOCO** (Economic and Organised Crime Office) for corruption and financial crime, and the **Minerals Commission** — not social media. A reckless public accusation can expose you to defamation liability, hand the project a way to change the subject and split the community, and, in galamsey country, endanger people. Name capture privately in your strategy; prove it publicly only when you can, and protect your leaders.

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## INTEGRATION & TIMELINE

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The five steps run in parallel and reinforce each other over a campaign that typically spans a year or more (and litigation, if it comes, longer). Here is how they fit onto one timeline.

### Realistic 12-Month Campaign Timeline

**Months 1-2 (Foundation).** - Identify the target precisely (Step 1) and write the one-page fact sheet — project, whether a full EIS/hearing applies, the EPA office and sector regulator, the land and the chief's position, the lever to pursue, every deadline. - Engage the **chief and traditional council** early; organise the community and form the association. - Begin baseline documentation (Step 2, Layer 1), water and cocoa land first — **photograph the clear river now** — before ground is broken. - Request records via the RTI Act; watch the newspapers for the advertisements.

**Months 2-3 (Launch).** - Submit **comments at screening and on the EIS**, and prepare a strong **public-hearing** intervention (Step 4, Track 1) — the key moment. - Lodge an **aggrieved-person complaint** to trigger suspension (Track 2). - Hold the community durbar and launch media timed to the hearing/comment windows (Steps 3 & 5). - Complete the EIS critique with expert help, focusing on water, mercury/cyanide, cumulative impact, and participation (Step 2, Layer 2).

**Months 3-6 (Expansion).** - Build the coalition — environmental and anti-galamsey NGOs, churches, farmers, and experts (Step 3, Phase 3). - Finish the health/economic analysis (Step 2, Layer 3). - File a **CHRAJ** complaint if the process is unjust; assess the court route with counsel. - Sustain press and political pressure; keep the chief engaged and leaders protected.

**Months 6-12 (Pressure & Decision).** - Escalate political and traditional pressure on the district assembly, the DCE, the regional minister, and the EPA (Step 3, Phase 4). - If an unlawful permit issues, seek **judicial review** in the High Court **promptly**, with an **injunction** (Step 4, Track 3); keep CHRAJ engaged (Track 2). - Sustain the media drumbeat — Ghana's press is a real force.

**Beyond 12 months.** - Litigation and appeals can run for a year or more; an injunction protects you meanwhile. - If the project proceeds, pursue monitoring, enforcement of conditions, and further complaints (and the EPA's new prosecution powers) for any breach. - Keep the community organisation and the file alive; the movement and evidence are assets for the next fight, and protecting leaders remains a priority.

### Warning Signs — Act Early

The project is advertised in the newspapers (act now — this triggers your comment chance); a screening report or EIS is filed; a mining lease or land is being acquired (watch for licences rushed near an election); the chief's stance shifts (a buying-off warning); no hearing is scheduled despite significant concern; galamsey activity or protection appears. Early action beats late reaction — and engaging the chief, preparing the hearing, and readying the aggrieved-person complaint early is far stronger than scrambling after a permit issues.

### Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: identify the live lever (usually the hearing, the water case, the aggrieved-person route, CHRAJ, and the courts); engage the chief and build a broad, durable community organisation, guarding unity against money; document rigorously, water and cocoa first; use the hearing, the aggrieved-person and CHRAJ routes, and the High Court with an injunction; sustain the press; hit every deadline; and protect their leaders. Losing campaigns: miss the advertised windows or the hearing; fail to document the participation flaws; rely on sentiment; get split by money or a bought chief; peak early; or neglect leader safety near galamsey.

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# FINAL ASSESSMENT

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## Real Outcomes: What Winning Looks Like

"Winning" in Ghana takes several forms, and it is worth naming them so you recognise a win when you get one: - an EIS **sent back**, or a permit **refused or suspended** (very often after a strong hearing or an aggrieved-person complaint); - a **public hearing and a real assessment forced** where they were skipped; - **tightened conditions**, or a refused sector licence or district planning permit; - a **CHRAJ finding** of administrative injustice or official complicity that shifts the politics; - a **High Court** order quashing an unlawful permit, or an **injunction** halting works; - a **chief or district assembly** withholding land or support; - a project **delayed for years** until its economics or politics collapse, or a **redesign** that removes the worst harm; - or **policy change** — as Ghana's anti-galamsey mobilisation has repeatedly forced — even where a specific project proceeds.

Ghanaian communities have achieved each — usually through organised community and traditional-authority pressure plus the hearing, the aggrieved-person route, CHRAJ, the courts, and a strong press, not through a single dramatic win.

## Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. If the hearing or participation was defective, or the water case is strong, an aggrieved-person complaint and (if needed) judicial review may be well worth it. If a permit has issued, effort shifts to the aggrieved-person and CHRAJ routes, the courts, district politics, and the next election. If every avenue is exhausted — and given galamsey risks — redirect accordingly. Continuing is not always right; neither is quitting at the first setback — Ghana's biggest wins came after sustained pressure. Throughout, weigh the safety of your people.

## The Bottom Line

Ghana's system leans toward mining and large projects, has weak and under-resourced enforcement, ties into a customary-land system where chiefs may benefit, and — with galamsey — includes dangerous, politically protected illegality — but it hands communities a real set of levers: **public participation** at every stage and a **public hearing** that can send an EIS back or defeat a permit; a distinctive **aggrieved-person** route that can **suspend a permit**; an accessible constitutional watchdog in **CHRAJ**; a **High Court** that enforces rights and quashes unlawful decisions, with injunctions; the **Right to Information Act**; and an unusually **free and active press** and anti-galamsey civil society. Communities that engage the chief and build a broad, durable organisation, document to the water and cocoa standards, intervene powerfully at the hearing and use the aggrieved-person, CHRAJ, and court routes rather than betting on a single dramatic move, guard their unity against the money that buys chiefs and splits towns, keep steady press and political pressure, and protect their leaders have suspended permits, forced hearings, won findings and convictions, delayed and reshaped projects, and driven policy change — and can again. No single step wins; the combination does. Start today by finding your deadlines, engaging your chief, documenting your river, and identifying which lever is actually open.